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India’s Message to Kashmir: The Noose can Extend Beyond the Gallows

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A curfew is like a collective strangulation. You proscribe movement, talk, communication and assembly. You cut off the very sustenance of life: food, milk, medicine. You choke a people, because you fear, no, dread, what the curfewed other might say to the world. Indian- controlled Kashmir has been under curfew for the last five days; everything is shut down, locked up, besieged. Newspapers have been seized, editors verbally instructed by police officials not to print, TV channels, except of course the government-run ones, have been blocked. People are not allowed to travel except if you have a bullet in your body and are still breathing inside an ambulance. This latest imposition—Kashmir’s modern history is bookmarked by chapter after chapter of sieges and martial-law-like curfews—came soon after Mohammad Afzal Guru was hanged by India for his involvement in the attack on India’s Parliament in 2001 in which nine people were killed.

In a case widely criticized for its dodgy investigation, the absence of a fair trial and, most crucially, the lack of evidence beyond reasonable doubt, the Supreme Court of India, upholding sentences of lower courts, sentenced Afzal Guru to a double death sentence in 2005. There was only circumstantial evidence against him, the court admitted, but the ‘collective conscience of society’ could only be soothed with this execution. As soon as what many call a miscarriage of justice was performed in Delhi’s Tihar Jail, the Indian government effectively shut off the Valley from the world. It was almost automatic, a reflex, and why wouldn’t it be, for the powerful and increasingly militaristic Indian state is well rehearsed in dealing with the oppressed and weak of Kashmir.

So the run of play in this heartless display of retributive justice was this: you hang a Kashmiri in Delhi and then, to complete the picture, to make the